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20 YEARS ANNIVERSARY

HERBERT SMITH FREEHILLS

CARTELS WORKSHOP: AN ADVANCED SEMINAR ON SUBSTANTIVE AND PROCEDURAL EU DEVELOPMENTS

BRUSSELS - 18 JANUARY 2024

KEY TAKEAWAYS

CORNERSTONE RESEARCH

IDS iDiscovery Solutions

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- Bulgarian Competition Authority
- Court of Justice of the European Union
- DG COMP
- French Competition Authority
- Portuguese Competition Authority
- Spanish Permanent Representation to the EU
- The Mission of Japan to EU
- UK Competition and Markets Authority

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- Compass Lexecon
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- Cornerstone Research
- Positive Competition
- RBB Economics
- Through Line Advisors

PROGRAM

12.00 Registration & Lunch

13.00 **OPENING KEYNOTE SPEECH**

Maria JASPERS | Director - Cartels, DG COMP, Brussels

13.30 **HOTCHPOTCH I - SUBSTANTIVE ISSUES**

Alexis BRUNELLE | Rapporteur, French Competition Authority, Paris

Jorge FERREIRA | Head of the Anti-Cartel Unit, Portuguese Competition Authority, Lisbon

Paola NEBBIA | Legal Secretary, Court of Justice of the European Union, Luxembourg

Gregor LANGUS | Vice President, Cornerstone Research, Brussels

Brigitta RENNER-LOQUENZ | Head of unit, Cartels III, DG COMP, Brussels

Moderators: **Kyriakos FOUNTOUKAKOS** | Managing Partner, Herbert Smith Freehills, Brussels

14.30 *Coffee break*

15.00 **HOTCHPOTCH II - PROCEDURAL ISSUES**

Juliette ENSER | Senior Director, Cartels, UK Competition and Markets Authority, London

Christopher MAYOCK | Deputy Head of Unit in the Cartel Directorate, DG COMP, Brussels

Eliza PETRITSI | Director, Deutsche Bank, London

Daniel RUPPRECHT | Director Europe, iDiscovery Solutions, London

Moderators: **Marcel NUYS** | Partner, Herbert Smith Freehills, Düsseldorf



KEYNOTE

Maria Jaspers

Director, Cartels, DG Comp, Brussels

Diversified portfolio of cases

- The Commission broke new ground by sanctioning cartels in defence and pharma sectors last year. It sent clear messages to strategic sectors, emphasising that no sector is immune to enforcement.
- The Commission also targets less classical types of cartel scenarios, beyond traditional price fixing and market sharing.
- For example, the Commission has adopted several decisions concerning collusions to influence reference prices (Ethylene, Styrene Monomer, Ethanol Benchmarks) and has recently issued a statement of objection in an ongoing investigation against car battery producers alleging collusion to create and use new types of public indices.

Leniency and ex-officio: key detection and evidence-gathering tools

- The number of leniency applications has continued to increase for the third year in a row.
- The Commission has already granted its first immunity marker application in 2024.
- The Commission will continue to bring forward *ex officio* cases to keep the current mixture of leniency and *ex officio* cases.
- The Commission will continue to invest in different channels through which both individuals and companies can inform about their suspicions and provide supporting evidence. It includes whistleblower channels, targeted outreach activities to certain industry representatives, screening of public data and cooperation with non-competition enforcers and competition authorities.
- The Commission does not need a specific legal framework or a legal basis to exchange intelligence and leads with other authorities.
- It will however only share information with other NCAs from informants if the informant agrees or the informant would be equally protected in the receiving authority.

Inspections, a key investigative tool

- Inspections give the Commission strong powers to enter both business premises and private homes to gather evidence.
- Inspections are intrusive and resource intensive, that is why this is not a tool that the Commission employs lightly.
- The Commission only uses it when it is confident that it has sufficient indicia to justify it. Private home searches remain exceptional but are an option if the Commission believes the information can be destroyed from the home office or employees would be reluctant to swiftly provide relevant devices and data to the inspected company premises.

Commission's settlement procedure: issues with an important case resolution tool

- The settlement procedure represents half of the decisions adopted by the Commission last year.
- This tool allows the Commission to conclude its cases on average at least a year quicker than the normal procedure and largely prevents the need to defend its cases in court.
- The Commission is only interested in settlements if it can generate the efficiencies and benefits that this system is designed to bring out (including concluding the case quicker than the normal procedure). That largely depends on the parties' mind-set.
- The Commission will not hesitate to quickly abandon the settlement route if a common understanding could not be adopted within a reasonable time period, which was the situation in the *Euro-denominated bonds case*, where the decision was recently adopted under the normal procedure. The *Handgrenades case* highlights the potential of the settlement procedure if everyone acts with a constructive mindset.
- The Commission can in certain situations opt for (staggered) hybrid investigations, as in the *SNBB Pharma case* where a settlement was adopted between six out of the seven parties that were investigated and the investigation continues under the normal procedure against the remaining party.
- The General Court dismissed the (rare) appeal against a settlement decision in the Clariant case, confirming the fine set by the Commission. It also dismissed the Commission's claim to de facto remove the settlement reward. Based on fact-specific elements, the Court did not agree that Clariant must have been aware of the Commission's position on certain fines parameters when it nevertheless decided to settle the case. The Commission will draw operational conclusions from the Clariant case to ensure there is no misconception in terms of what the parties are signing up to in the settlement context.
- So, settlements are a useful tool, it has the potential to bring benefits on both sides. However, signs of delaying tactics and an increased appetite to appeal such decisions can affect the Commission's interest to settle as many cases as it has done in the past.

Marie de Monjour drafted the following synthesis for Concurrences. The views expressed in this presentation are those of the speakers and do not necessarily represent those of the institutions to which they are affiliated.





Hotchpotch 1

SUBSTANTIVE ISSUES

Kyriakos FOUNTOUKAKOS (Managing Partner, Herbert Smith Freehills, Brussels) moderated the discussion.

- Kyriakos set the discussion in context by noting that regulators have stepped up their cartel enforcement efforts in recent years with a renewed focus on own-initiative cases and new tools to incentivise leniency applicants. This appears to have borne fruit in the form of higher numbers of leniency applications, dawn raids and overall enforcement.
- An important element is also the complexity of the cases brought by the European Commission or the novelty of the sectors targeted. Cases include purchasing cartels, non-price cartels affecting innovation and information exchange. Sectors include the first ever cartel in the defence sector. Hot topics such as no-poach agreements in the labour market are a new area of focus.
- The EU Courts continue to issue interesting judgments in many areas of cartel law, most recently on non-compete agreements and purchasing cartels.

Brigitta Renner-Loquenz

Head of Unit, Cartels III, DG COMP, Brussels

Developments in buyer cartels

- The new Guidelines on Horizontal Cooperation provide guidance on the delineation between «by object» buyer cartels and other forms of purchasing arrangements.
- Buyer cartels are «by object» infringements. In practice, they are at the very end of the spectrum of purchasing arrangements.
- Joint purchasing arrangements generally do not amount to a restriction of competition «by object». If they are genuinely for joint purchasing, they are usually unproblematic.
- The Guidelines identify two factors that make it less likely that the line will be crossed into a buyer cartel ; (i) Joint purchasing arrangements should clearly indicate to suppliers that they are negotiating purchases on behalf of their members. (ii) Members of the joint purchasing arrangement should formalise their cooperation in a written agreement to allow for ex-post compliance verification.
- None of the Commission's decisions on buyer cartels have involved genuine joint purchasing. Buyer cartels can attract significant fines. In its last three decisions, the Commission increased fines by 10% to better reflect the economic importance of buyer cartels and to ensure deterrence.
- In the ethylene cartel case[1], the General Court upheld the Commission's decision, confirming the fine increase and as its magnitude.
- The fine increase aims not to reflect the actual effect of a buyer cartel but to compensate for the inherent issue of basing fines on the value of purchases, which is usually lower, rather than the (default) value of sales. This approach takes into account of the fact that the value of purchases decreases as the cartel becomes more successful and does not adjust the fines to reflect the economic importance of the cartel as in the case of sales cartels.
- Despite the relatively small absolute number of buyer cartels, they are not lower in the Commission's enforcement priority and remain part of its enforcement portfolio.

1 AT.40410 – *Ethylene.*





Labour market agreements

- In recent years, several enforcement authorities have taken a clear stance on pursuing wage-fixing and no-poach agreements as «by object» infringements.
- In two recent guidelines, the Commission has stated that wage-fixing and no-poach agreements are likely to infringe Article 101 of the Treaty on the Functioning of the European Union TFEU «by object».
- While labour market cases are one part of the Commission's portfolio, the Commission does not expect to pursue a high number of them because of the often small geographic scope of labour markets. National competition authorities are, therefore, often better placed to deal with them.
- The EU Courts have established a balanced legal framework for the assessment of labour market agreements as «by object» or «by effect» cases. In order to avoid false positives in the «by object» box, the Commission must assess the conduct in its legal and economic context without slipping into a «by effect» analysis. Wage-fixing and no-poach agreements are among the types of infringements listed in Article 101(1) TFEU, for which the assessment of the legal and economic context is restricted to what is strictly necessary. Pro-competitive effects must be taken into account but must meet the legal threshold.

Jorge FERREIRA

Head of the Anti-Cartel Unit, Portuguese Competition Authority («AdC»), Lisbon

Competition in labour markets

- The AdC initiated advocacy efforts by publishing an issue paper and a best practices guide to prevent anti-competitive agreements in labour markets.
- This was followed by an enforcement action in a case involving a stand-alone no-poach agreement in the football market. The AdC concluded this to be a «by object» infringement due to its potential negative impact on football players and consumers.
- The AdC also looked at some issues related to the clubs' significant market power on the buyer side of the market.
- The specialised competition court in Portugal requested a preliminary ruling to the Court of Justice of the EU to clarify the scope of the «by object» approach in this case.
- The AdC also has three other ongoing investigations at various stages.
- Competition in labour markets extends beyond sports and IT, and further investigations are expected in various sectors in Portugal and Europe, as such conduct may be more widespread.

Challenges in enforcing competition in labour markets

- There are analytical challenges, particularly in relation to buyer cartels, which often revolve around issues of market definition and the setting of fines.
- We believe the fine should be based on company revenues rather than on the salaries paid to the affected employees, which represent costs to the companies involved.
- A major challenge is limited precedent for this type of infringement.
- In such a scenario, it is essential to overcome the reluctance to address novel issues and behaviours, including those in labour markets, employing a «by object» approach.
- The lack of prior classification of conduct as a «by object» infringement does not preclude it from being considered a hardcore restriction, even if it appears in new markets or uses new tools: wage-fixing agreements serve as a prime example.

Gregor LANGUS

Vice President, Cornerstone Research, Brussels

Buyer power through coordination between buyers

- In antitrust, the exercise of seller power and the exercise of buyer power should not be treated symmetrically. This is because there is considerable scope for buyer power to improve economic outcomes, whereas this is not the case for seller power.



- The exercise of buyer power may harm economic efficiency by: (i) reducing the quantity of inputs purchased and the corresponding reduction in downstream output; (ii) allowing buyers to extract the value of suppliers' investments – thereby hampering incentives for upstream investment; (iii) creating incentives for exclusive dealing, leading to a loss of variety. The harm is compounded when upstream coordination spills over into downstream coordination.
- On the other hand, buyer power can benefit consumers and economic efficiency by (i) transferring cost savings on inputs to downstream consumers, (ii) enhanced competition among downstream sellers, (iii) incentivising upstream suppliers to invest in value-added (or cost-reducing innovation) in an effort to counter buyer power.
- Recent economic literature has shown that intense downstream competition is not necessary for these benefits to occur and that buyer power can improve both total welfare and consumer welfare in a broader set of circumstances than previously believed.

Coordination between employers

- There is empirical evidence that wage-fixing or no-poach agreements may reduce cumulative earnings and worker mobility.
- Such agreements can also thwart the efficient allocation of talent across firms and industries— thereby hampering static and dynamic efficiency—and impede product market competition by reducing the flow of information to competitors.
- However, no-poach agreements can also have considerable pro-competitive effects. Such agreements may (i) reduce the hold-up problem where an employee threatens to switch jobs after receiving free training; (ii) reduce the extent of disruptive employee turnover and thus improving service quality; and (iii) reduce the extent of free-riding where employers seek to free-ride on other employers' investments (e.g. in the context of franchising).
- The fact that non-compete and no-poach agreements are more common in technical professions and for employees with access to competitively sensitive information is consistent with these potential pro-competitive effects.

Alexis BRUNELLE

Rapporteur, French Competition Authority, Paris

Contradictory debate practices

- The case law of the EU Courts provides the Authority with guidance on how to conduct the contradictory debate.
- However, the Authority is dealing with the facts and their interpretation. Its cases rely as much on the facts as on conceptual notions or legal categories.
- This could lead to in-depth discussions with the parties, even in «by-object» cases. In November 2023, a case from the Paris Court of Appeal illustrates how agreements between undertakings prosecuted as «by object» restrictions are scrutinised for their competitive impact, involving economic and business analysis. This case emphasises the need for detailed analysis in all types of cases.
- There is no one-size-fits-all approach to cartel cases. On the contrary, each type of practice must be dealt with in a concrete manner, recognising the unique nature of each case.
- Concerning parental liability, when the «Akzo» presumption is applied, it is for the parties to provide evidence that there was no economic unit between the parent company and its subsidiary. The Authority must then carefully examine the evidence brought by the parties.
- In a case concerning the nuclear sector before the French Authority, an interesting solution was found where a system of turnover thresholds within the group, which determines the autonomy of the subsidiaries to sign an agreement, creates a notion of control because it is a group-wide strategy.

A few cases on information exchange have been considered «by effect»

- There is no distinction between «by effect» and «by object» exchanges of information in terms of the gravity or seriousness of the infringement.
- Even when the exchanges undergo a «by effect» analysis, the rationality behind the exchange between undertakings constitutes a key element. It is something that economic operators need to consider very carefully.





Paola NEBBIA

Legal Secretary, General Court of the EU, Luxembourg

Recent developments at the General Court of the EU

- The General Court has now reached its full capacity and has 54 judges.
- As a result of the increase in the number of judges, some competences for preliminary rulings in limited areas of law are now in the process of being devolved from the Court of Justice to the General Court.
- Although this has no direct impact on competition cases, it could influence the practical functioning of both Courts.
- The performance of the General Court has improved, with the average duration of cases almost halved over the last nine to ten years.
- Fewer new cases were observed in 2023, with less than five cartel cases and just over ten antitrust cases, possibly influenced by settlements.

About the Clariant case

- The Clariant case[2], a settlement case, involved a purchasing cartel with a 50% fine increase for recidivism and a 10% increase based on point 37 of the Guidelines on the method for setting the fines.
- One takeaway from the judgement concerns the point in time from which recidivism can be taken into account. According to the General Court, that point in time is when the Commission adopts a decision on the infringement vis-à-vis the addressee.
- A second takeaway concerns point 37 of the Guidelines, which allows the Commission to depart from the standard methodology if justified by the particularities of a given case or the need to achieve deterrence in a particular case.
- The case highlighted a paradox in the calculation of fines in purchasing cartels: the more successful the cartel, the lower the fine, which ultimately does not reflect the economic importance of the cartel.
- Third, the judgement clarified the relationship between increases in fines for general deterrence (point 25) and case-by-case deterrence (point 37)
- Finally, the Court addressed the Commission's counterclaim for the removal of a 10% reduction obtained in the settlement procedure, emphasising that acceptance of responsibility for the infringement and of a maximum fine does not entail acceptance of the final amount of the fine or of the parameters for its calculation.

Other relevant cases

- The Energy of Portugal case[3], which was not a cartel but a restriction of competition «by object», addressed, among others, the notion of potential competition.
- In non-regulated markets, factors such as evidence of intent, perception, and non-compete agreements indicate potential competition.
- Activities carried out by sister companies within the same group but not part of the agreement were considered relevant for the assessment of «potential competition».
- It is worth pointing out that in the recent Bulgarian Energy Holding judgement[4], the General Court highlighted the concept of a «sufficiently advanced project» to enter the market as a criterion for assessing «potential competition».
- The Energy of Portugal case also pointed to the difference between the agreement at issue in that case (an association agreement) and agency and/or vertical agreements, and the importance of risk-sharing and whether the parties operate outside the same production or distribution chain in "classifying" an agreement.
- «By object» restrictions, in that case, involved a non-compete clause as a form of market exclusion, akin to market sharing, which involved considerations of the legal and economic context, including pro-competitive effects.

2 T-590/20 – *Clariant and Clariant International v Commission* (the «Clariant» case).

3 *C-331/21 – EDP – Energias de Portugal and Others (the «Energy of Portugal» case).*

4 *T-136/19 – Bulgarian Energy Holding and Others v Commission («Bulgarian Energy Holding»).*





Hotchpotch 2
PROCEDURAL ISSUES

Marcel NUYS (Partner, Herbert Smith Freehills, Düsseldorf) moderated the panel.

Christopher Mayock

Deputy Head of Unit in the Cartel Directorate, DG COMP, Brussels

Leniency trends

- Leniency applications have increased for the third consecutive year, following a sharp decline from 2014/2015.
- There are three possible reasons for the uplift in leniency applications.
- The first reason is the increased focus on *ex officio* enforcement. *Ex officio* and leniency are seen as complementary tools, because stronger *ex officio* enforcement enhances detection, increasing the incentive to apply, and driving leniency applications.
- The second reason is the recent investigative activities, including raids and proactive press releases.
- The last point is the reduced burden on applicants, such as the introduction of an online platform (leniency), making the process less cumbersome and more transparent.
- The use of FAQs to clarify policy and practice adds an additional layer of transparency to the leniency application process.

Frequently asked questions on leniency

- FAQs were introduced in October 2023 to clarify policy and practice regarding leniency programs.
- FAQs cover various issues, including dealing with markers, assessing significant added value, significant added value threshold for leniency qualification, and leniency reduction approaches.
- Another aspect of the FAQs was the introduction of new arrangements. One of those innovations is the introduction of leniency officers, serving as the public face and primary contact for leniency-related matters.
- Leniency officers will guide parties through the early stages of the procedure until the application is passed to the case team.
- The possibility of no-name discussions is highlighted as an innovation, allowing potential applicants to describe conduct abstractly without disclosing identities or market details.
- DG COMP provides indications on whether the conduct is likely to fall within the leniency notice during no-name discussions.

Cooperation within the European competition network (ECN) on leniency

- Close cooperation exists between the Commission and national competition authorities within the ECN with regular meetings covering various leniency issues.
- In situations involving parallel immunity applications there is a specific focus on case allocation between authorities.
- In cases where the Commission decides not to proceed due to such reasons assize, scope, or focus, it may leave the case to the National Competition Authority (NCA).
- Where multiple parallel applications are made, concerns may arise from applicants about potential different or inconsistent approaches by NCAs in reviewing the same case content. To address these concerns, the Commission takes a two-step approach:





- First, assess if there's initial broad consensus among NCAs on approaching the case; if so, the Commission may decline to act.
- Second, remain involved and play a coordinating role after case allocation to ensure a consistent approach among NCAs.

- The feedback from both NCAs and applicants regarding this approach has been broadly positive.

Cooperation between the CMA and DG COMP

- Historically, when the CMA was still an active and leading member of the ECN, there was excellent cooperation with DG COMP.
- Even if the CMA was part of the ECN, there were already different regimes applied because the UK had the possibility to impose criminal sanctions on individuals. Thus, it was almost considered like a third country jurisdiction in certain scenarios.
- The interaction in the current environment is thus not entirely unfamiliar, and the geographical proximity to the UK leads to frequent cooperation in cases covering Europe.
- Cooperation remains excellent even in the changed environment.

Juliette Enser

Senior Director, Cartels, UK Competition and Markets Authority, London

UK perspective on leniency

- Leniency cases constitute a significant portion of casework in the UK, accounting for about half of the cases.
- Other cases are described as «intelligence-led,» including information from informants, victims, referrals from other agencies, and anonymous tip-offs.
- In general terms the UK has a healthy pipeline of cases both in terms of number and quality.
- Post-launch applications can contribute to advancing investigations.
- The leniency program in the UK is designed to provide up-front certainty, with detailed guidance on principles and process.
- Incentives are aligned for both companies and individuals participating in the leniency program.

How to increase the number of leniency applications

- Currently reviewing how the leniency policy can be improved in terms of effectiveness and efficiency.
- The current UK leniency policy dates back to 2013, and a reevaluation is appropriate due to evolving practices and lessons learned.
- For example, director disqualification has become a more relevant aspect, prompting the need for a review.
- As part of the review, the CMA will consider whether there is a need to refine the balance of incentives, particularly regarding what the first pre-launch applicant can expect compared to those entering later in the process.
- CMA will be consulting stakeholders to gather input and feedback during the process of revising the leniency guidance.

What the CMA is asking from applicants

- The expectation is for leniency applicants to approach the process with a spirit of cooperation to genuinely assist and advance the investigation.
- A senior representative of the applicant is required to sign a letter confirming their understanding of the conditions of leniency and commitment to complete cooperation.
- Applicants are expected to provide all relevant information promptly, for example following up on further lines of inquiry from internal document reviews without waiting for requests from authorities.
- The possibility of inspections at the premises of leniency applicants in the UK may be considered (facilitated by the applicant).
- Applicants may be asked to make employees available for interviews, including considerations like arranging separate legal representation where appropriate and taking other steps to help secure their cooperation.
- While earlier applicants are more likely to add value, the system does not exclude the possibility of significant reductions for later applicants if they can still contribute substantially.



Obstruction

- Modern work poses challenges in preventing the destruction of evidence, especially with changing communication methods (eg messaging apps) and remote working.
- Authorities are adapting strategies to address obstruction related to modern technology.
- Increased risk of obstruction with the use of messaging apps and remote work.
- Penalties may be imposed even if the underlying infringement isn't established.
- For companies, risk that they can't readily obtain information to determine the extent of their liability and consequently to consider whether or not to apply for leniency. Deletion of material may also reduce the value added by any leniency application. Companies may want to specifically cover these issues as part of "dawn raid"/ compliance training.
- Authorities need to use appropriate investigation strategies and invest in forensic capabilities.
- Legal frameworks preventing evidence deletion are crucial and enforcement against obstruction is necessary.
- Cases in the UK and elsewhere in Europe highlight penalties for obstruction, including removing documents and deleting messages.

Eliza Petritsi

Director, Deutsche Bank, London

In-house perspective on compliance

- Industries are increasingly enhancing compliance frameworks and programs, learning from previous cases on antitrust risks and limitations.
- Robust compliance may lead to more leniency considerations or settlement discussions, also considering the complexities of antitrust laws. However, there are several considerations that influence potential decisions to pursue leniency or settlement avenues.
- Effective compliance programs require a cultural shift within a company, ongoing efforts, discipline, and resources involving everyone from top management to every employee.
- Milestones in compliance programs include identifying and assessing risks, enhancing awareness, implementing effective controls and systems, robust risk assessments and continuous monitoring and updating.
- Compliance brings substantial benefits but extensive compliance efforts may also result in some inefficiencies.
- Companies may need to identify and focus on high-risk areas, conduct ongoing compliance risk assessments, and implement oversight and assurances.
- A granular approach may be necessary due to non-homogeneous antitrust risks, with different companies adopting various setups for compliance.
- Establishing a framework that effectively manages identified risks, complies with minimum standards, introduces metrics, and establishes and assesses controls is essential.
- Comprehensive training, including mandatory, ad hoc, and bespoke training, is necessary for antitrust experts and other stakeholders to discuss issues, assess risks, and understand consequences of breach of the rules, policies and controls.
- Creating a conducive environment for open discussions may increase the chances of leniency considerations or settlements if issues arise.

Challenges in establishing efficient compliance

- Challenges in antitrust compliance arise from the complexity of counterparty relationships, pro-competitive interactions, and increased regulatory scrutiny.
- Grey areas emerge due to the interpretation and practical application of legal concepts, such as by-object infringements, exchanges of information and varying interpretations based on market context.
- Market practices can be scrutinised under different lenses, contributing to ongoing legal issues in various markets.
- Factors like policy considerations, political dimensions to some extent in certain jurisdictions, and lack of regulatory alignment pose additional challenges to compliance.
- Regulatory guidance and in-house guidelines are helpful but may not provide full predictability in complex settings and relationships.
- Assessing risk exposure, allocating degrees of risk based on gravity, implementing control framework and oversight and adapting to industry-specific developments and emerging risk are essential for compliance.
- Flexibility is needed, avoiding overly prescriptive regulatory guidelines.
- Regulators becoming sceptical emphasises the importance of staying informed about emerging risks, such as those in labour markets and green initiatives.



- Understanding the interaction between regulatory and antitrust rules, especially in regulated markets, is crucial for compliance.
- Compliance is essential, challenging, and requires ongoing involvement, but businesses are increasingly aware of the consequences of antitrust violations and the importance of compliance.

Daniel Rupprecht

Director Europe, iDiscovery Solutions, London

Forensic perspective on the impact of data volumes during investigations

- Information is crucial in legal scenarios, emphasising cooperation and transparency.
- Vast data volumes pose a persistent challenge in investigations.
- Corporations and law firms should focus on information governance for proactive measures. It is important to understand the digital environment for effective communication analysis.
- There is a necessity to understand how an organisation manages the vast amount of data as well as any kind of proactive measures to control the narrative during the course of an investigation.
- There are concerns about the security of information sent to personal residences. It is important to have strong answers about data location and accessibility.

Data protection

- Data protection considerations are crucial when collecting organisational and personal data.
- Clear goals are vital in addressing the invasive nature of questions and requests in digital investigations.
- Retrieving documents by warrant is straightforward, but expanding investigations requires understanding data protection frameworks in different jurisdictions.
- Cultural sensitivity is key, as diverse reactions to data requests exist across regions.
- The data investigator's role is to reassure individuals by emphasising the targeted nature of data collection and ensuring responsible practices to prevent accidental disclosure of personal information.

What happened after data is identified

- The identification of data leads to an overwhelming volume of documentation.
- It is challenging to handle too many documents in a limited time as quick responses are necessary, especially when leniency is considered.
- Promptly accessing the right documents is necessary to control the narrative.
- There was a shift from traditional search term analysis to advanced analytical technologies.
- Collaboration between technology specialists and lawyers is crucial during investigations.
- It is already possible to see some efficiency in tackling insurmountable tasks and showcasing them with collaborative efforts.
- There is a robust audit trail for transparency in investigations.